

CAUSE NO. _____

162nd

**CITY OF GARLAND AND GARLAND
INDEPENDENT SCHOOL DISTRICT**§ IN THE _____ DISTRICT COURT
§

VS.

§ IN AND FOR

§

MISAEAL RIVERA MARTINEZ, ET AL.

§ DALLAS COUNTY, TEXAS

PLAINTIFFS' ORIGINAL PETITION

TO THE HONORABLE JUDGE OF SAID COURT

Now come(s) the taxing districts set out below:

CITY OF GARLAND and GARLAND INDEPENDENT SCHOOL DISTRICT

on behalf of themselves and all taxing districts for whom they collect. Each is a political subdivision of the State of Texas, each is legally constituted and authorized to impose and/or collect ad valorem taxes, and each is hereinafter called "Plaintiff", whether one or more, original or intervenor, and for such cause of action would show the following:

1. The name(s) and address(es) of Defendants is/are:

MISAEAL RIVERA MARTINEZ
209 W. RIDGEWOOD DRIVE
GARLAND, TX 75041

KEN MY LUONG (IN REM ONLY)
683 E. MUIRFIELD ROAD
GARLAND, TX 75044

RESOLUTION FINANCE, LLC (IN REM ONLY)
BY SERVING REGISTERED AGENT, MATT T. LONGHOFER, OR ANY OTHER
OFFICER OR AGENT AUTHORIZED TO ACCEPT SERVICE
4100 ALPHA ROAD, SUITE 670
DALLAS, TX 75244

Said Defendant(s) currently own(s) or claim(s) an interest in the property hereinafter described and/or owned the hereinafter described property on the first day of January of each of the years for which taxes are due and owing. Discovery is intended to be conducted under Level 2 pursuant to Rule 190 of the Texas Rules of Civil Procedure.

2. The taxes in the amounts and for the years shown below were legally imposed on each separately described property and on the respective person named (if known) who owned the property on January 1 of such years. Such taxes are delinquent and owing, along with penalties and interest authorized by law and detailed below:

Year	Taxes	Pen & Int	Total
2024	\$1,777.74	\$974.20	\$2,751.94
2025	\$2,376.88	\$766.54	\$3,143.42
Total For: GARLAND INDEPENDENT SCHOOL DISTRICT			\$5,895.36

Year	Taxes	Pen & Int	Total
2023	\$627.98	\$434.56	\$1,062.54
2024	\$1,166.80	\$639.40	\$1,806.20
2025	\$1,400.16	\$451.55	\$1,851.71
Total For: CITY OF GARLAND			\$4,720.45

Total Due For Property	\$10,615.81
Research Fee:	\$350.00
Total for: June, 2026	\$10,965.81

(This amount does not include court costs which must be paid prior to dismissal).

The property is specifically described as follows:

Property Code: 26485500020320000

LOT 32, BLOCK 2, RIDGEWOOD ESTATES NO. 1 ADDITION, AKA 209 W RIDGEWOOD DRIVE, CITY OF GARLAND, TEXAS AS RECORDED IN INSTRUMENT 201900205392, OF THE DALLAS COUNTY DEED RECORDS.

In addition to the amounts stated above, Plaintiff(s) sue(s) for costs of court, foreclosure sale expenses and research expenses for determining the name, identity and location of necessary parties and in procuring necessary legal descriptions of the property, and other costs, all as authorized by law. Further, Plaintiff(s) sue for all additional taxes which become delinquent on such property prior to judgment, as well as any additional penalties and interest which accrue prior to or after judgment, to the date of sale.

3. Plaintiff(s) would show that all conditions precedent to the right to levy said taxes were performed as required by law; that all of said taxes were authorized by law; and that all things required by law have been duly and legally performed by the proper officials.

4. Plaintiff(s) would further show that the Attorney signing this petition is legally authorized to prosecute this suit on behalf of the taxing unit and Plaintiff(s) therefore request(s) attorney fees as provided by law.

5. Each tract of the said above-described real estate and/or item of personal property was, on January 1st of the aforesaid years and at the time said taxes were imposed, located within the boundaries of each of said taxing units and within the boundaries of DALLAS COUNTY, TEXAS. Each taxing unit asserts a lien on each separately described property listed above to secure the payment of all taxes, penalties, interest and costs due.

6. Defendant(s) shall take notice of all pleas and interventions which may be filed by Plaintiff(s) or any party intervening.

7. Plaintiff(s) would show that the party or parties who owned the property, described above, on January 1 of the years indicated are indebted to Plaintiff taxing units for said taxes, penalties and interest, and are liable for all costs herein. Plaintiff(s) seek personal liability against such owners, as well as foreclosure of the tax lien on each separately described property. As to all Defendants, Plaintiffs' action is a proceeding in rem only, whereby Plaintiff(s) seek(s) to foreclose the tax lien(s) on each separately described property listed in satisfaction of the taxes, penalties, interest and all costs due or to become due herein.

WHEREFORE, Plaintiff(s) pray that Defendant(s) be cited to appear and answer herein and that on final hearing recover the following:

- A. Personal judgment against such Defendant(s), except those designated otherwise above, who owned the property described herein on January 1st of the years indicated above, for all taxes, penalties, interest, attorney fees, and costs that are due or will become due;
- B. Foreclosure of the tax lien(s), issuance of an order of sale and/or execution on the property described above and payment of all taxes, penalties, interest, and costs that are due or will become due and that are secured by such tax lien(s), which tax lien(s) is first, prior and/or superior to any other interest in said property; and
- C. Such other and further relief to which Plaintiff(s) may be entitled.

Respectfully submitted,

PERDUE, BRANDON, FIELDER, COLLINS & MOTT, L.L.P.
ATTORNEYS AT LAW
1919 S. SHILOH ROAD, SUITE 640, LB 40
GARLAND, TX 75042
(972) 278-8282 FAX:(972) 278-8222



BY _____

J. DOUGLAS BURNSIDE
Bar No. 24001814
dburnside@pbfc.com
LINDA D. REECE
Bar No. 24065471
lreece@pbfc.com

Automated Certificate of eService

This automated certificate of service was created by the eFiling system. The filer served this document via email generated by the eFiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Daniela Maldonado on behalf of LINDA REECE

Bar No. 24065471

dmaldonado@pbfc.com

Envelope ID: 115067308

Filing Code Description: Original Petition

Filing Description: - REAL PROPERTY

Status as of 5/19/2026 10:04 AM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
ARLENE MITCHELL		amitchell@pbfc.com	5/19/2026 9:30:31 AM	SENT